

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG PC DLMIZ

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
~~MARK A. GILLIS, LPC, LICENSE NO. 1182~~

1882

Respondent.

IT IS HEREBY STIPULATED and agreed by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Mark A. Gillis, LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The Board granted respondent a license to practice professional counseling in Colorado on February 27, 1998. Respondent has been licensed to practice professional counseling since that date and was so licensed at all times relevant to the events resulting in this Stipulation and Order. He holds license number 1182.
3. On or about January 11, 2001, the Board reviewed information indicating that on or about December 20, 2000 respondent pled guilty to felony sexual assault on a child. This information indicates that the victim involved in the assault was not a client in a professional counseling relationship with respondent. The Board, however, has determined that this offense is related to respondents ability to practice professional counseling and constitutes a violation of the Colorado Mental Health Statue.
4. Following review of the available information and report of investigation, the Board referred this matter to the Attorney General's office for disciplinary action regarding respondent's license to practice professional counseling in Colorado.
5. Respondent understands he has the right to a formal disciplinary hearing, pursuant to C.R.S. §12-43-224, with respect to the complaints filed against him. Respondent further

understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to a hearing; relieves the Board of its burden of proving the facts and conduct contained in the complaint; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that, pursuant to C.R.S. §12-43-224(5), he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent desires to resolve this matter by voluntarily surrendering his license to practice professional counseling in Colorado. Respondent is surrendering his license in lieu of proceeding with the pending summary suspension and disciplinary action against his license. It is understood that the Board order entered pursuant to this stipulation will revoke respondent's license to practice professional counseling in Colorado and he will be rendered ineligible to apply for any license, registration, or listing issued under Article 43, Title 12 of Colorado Revised Statutes until more than three years have elapsed from the date of the surrender of license, as provided in C.R.S. §12-43-224(3)(a)(II).

7. Respondent hereby freely and voluntarily relinquishes and surrenders his license as a Licensed Professional Counselor in the State of Colorado.

8. Respondent enters into this stipulation and order voluntarily, and after being fully advised both as to his right to a hearing and as to the consequences of this stipulation and order.

9. This Board order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §§12-43-224 and 24-4-105, and it revokes respondent's professional counselors license and is considered an order of revocation for all purposes.

10. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

11. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

12. This stipulation and order shall take effect on acceptance and signature by the Board.

13. This stipulation and order is a public record.

Mark A. Gillis
MARK A. GILLIS, LPC
Respondent

DATED:

ACCEPTED, SIGNED, AND ORDERED this 16th day of March, 2001.

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

Susan L. Garcia
SUSAN L. GARCIA, LPC
Board Chair

APPROVED AS TO FORM

FOR THE ATTORNEY GENERAL:

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